

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 720

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 50-707A, IDAHO CODE, TO REVISE
A PROVISION REGARDING THE ELECTION OF COUNCILMEN BY DISTRICTS; AND
DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 50-707A, Idaho Code, be, and the same is hereby
amended to read as follows:

50-707A. ELECTION OF COUNCILMEN BY DISTRICTS. (1) Any city having
fewer than ~~one hundred thousand (100,000)~~ twenty-five thousand (25,000)
inhabitants based upon the most recent federal decennial census may, by or-
dinance, provide for districts and the election of councilmen by districts.
Upon the adoption of such an ordinance and at least one hundred twenty (120)
days prior to each general election, the governing body of the city shall
establish the territory of council districts in accordance with this sec-
tion. Any city having more than ~~one hundred thousand (100,000)~~ twenty-five
thousand (25,000) inhabitants based upon the most recent federal decennial
census shall establish districts and shall elect councilmen by districts
for districts so established. Districts shall be established no later than
one hundred twenty (120) days prior to the general election following the
date that election precincts are established pursuant to the provisions of
section 34-301, Idaho Code.

(2) Each district shall consist of one (1) or more contiguous election
precincts as established pursuant to the provisions of chapter 3, title 34,
Idaho Code, and each district shall, to the nearest extent possible, contain
the same number of people based upon the most recent federal decennial cen-
sus.

(3) Each city establishing districts for the election of councilmen by
districts shall establish the number of districts corresponding to the num-
ber of council seats determined by the city pursuant to section 50-701, Idaho
Code, or for any city having a governing body governed by the provisions of
sections 50-801 through 50-812, Idaho Code, the number of council seats de-
termined by the city pursuant to section 50-805, Idaho Code.

(4) Upon establishment of city election districts, council members are
to be elected by the electors of the said geographic district, and any can-
didate must be a resident of said geographic district. For cities with fewer
than ~~one hundred thousand (100,000)~~ twenty-five thousand (25,000) inhabi-
tants that establish districts by ordinance, the council shall determine,
not less than ninety (90) days before the next general election, the method
of the implementation of this ordinance.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.